Fort Bend County District Court

Cause No. 2024-CV-0006

Colin Bell, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	12-25-24
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant, by and through its undersigned counsel, files this Original Answer to Plaintiff's Original Petition and respectfully shows the Court as follows.

I. General Denial

Pursuant to Texas Rule of Civil Procedure 92, Defendant generally denies each and every, all and singular, the material allegations contained in Plaintiff's Original Petition, and demands strict proof thereof by a preponderance of the evidence as required by the Constitution and laws of the State of Texas.

II. Affirmative Defenses

First, Defendant asserts the defense of proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. Plaintiff's own negligence, including failure to keep a proper lookout, failure to yield the right-of-way to oncoming traffic, and failure to exercise ordinary care, proximately caused or contributed to the occurrence. Any recovery must be reduced in accordance with Plaintiff's percentage of responsibility, and any recovery is barred if Plaintiff's responsibility exceeds fifty percent.

Second, Defendant asserts sole proximate cause. The conduct of a third party or of Plaintiff, and not any act or omission of Defendant, was the sole proximate cause of the occurrence.

Third, Defendant asserts the defense of sudden emergency. Defendant was confronted with an emergency not of its own making, requiring a split-second decision, and it acted as a reasonably prudent person would under the same or similar circumstances.

Defendant reserves the right to amend this Answer as discovery proceeds.